# Indian Constitution

## Module 2

Vtuadda

Presenting
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# Syllabus

- Salient Features of Indian Constitution
- Preamble of Indian Constitution & Key concepts of Preamble
- Fundamental Rights (FR's) & its Restriction and limitations in different complex situation

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# Salient Features of Indian Constitution

**1. Lengthiest Written Constitution** in the World

- Indian Constitution contains **a Preamble, 22 Parts, 395 Articles and 8 Schedules** during the time of adoption.
- Now IC contains **a Preamble, 25 Parts, 470 Articles and 12 Schedules**

**2. Universal Adult Franchise (UAF)**

- All the citizens above 18years have rights to Vote

**3. Secular State**

– No discrimination between two religions

**4. Borrowed from various sources**

**5. Quasi – Federal System**

- **Federal:** Powers Divided between national government and regional government
- Division of Powers : **1. Union List** – 100 Subjects such as Railway, Passport, Defence, external affairs etc., **2. State List** – 61 subjects such as Police, Local Government etc., **3. Concurrent List** – 52 Subject such as Criminal Law, Forests, Education etc.,
- In case of conflict between central and state law on any subject relates to concurrent list, the central law prevails
- **Unitary:** Power lies in the hand of National government
- Single Constitution & Single Citizenship

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**6. Blend of Rigid & Flexible**

- **Rigid:** Difficult to make changes - USA
- **Flexible:** Easy to make changes – British

**7. Parliamentary Government**

- In parliamentary form of government, the **executive is accountable to the legislature** and both organ work on the principle of cooperation and co-ordination .

**8. Three Level Government**

- Originally constitution of India provided for only dual polity i.e., the central government and state government.
- **73rd and 74th amendments** added third level government i.e., **Local government** such as Panchayats and Municipalities.

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**9. Constitutional Bodies**

- It is directly established by the constitution itself
- Example: UPSC, KPSC, National Commission for SC, etc.,

**10. Fundamental Rights (FR's)**

- **Part III** of the constitution from **Article 12 to 35** deals with the FR's, Borrowed from **USA**

**11. Directive Principles of State Policies (DPSP's)**

- **Part IV** of the constitution from **Article 36 to 51** deals with the DPSP's, Borrowed from **Ireland**

**12. Fundamental Duties**

- There are about **11 FD's** which is listed in **Article 51A**, Borrowed from **USSR (Soviet)**

**13. Judicial System**

- India has a **integrated and independent judicial** system
- Integrated means it has a single system of courts
- Independent means it is not dependent on either legislature nor executive organs of the government

**14. Emergency Provisions**

- **Part XVIII** of the constitution from **Article 352 to 360** deals with the various aspects of Emergency Provisions
- National Emergency (352), President Rule (356), Financial Emergency (360)

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| S. No. | Source | Borrowed Features |
|---|---|---|
| 1. | Government of India Act 1935 | – Judiciary<br>– **Public Service Commissions**<br>– Federation system<br>– **Office of Governor**<br>– **Emergency provisions** |
| 2. | British Constitution | – **Parliamentary system**<br>– **Single citizenship**<br>– **Cabinet system**<br>– **Prime Minister and Council of Ministers**<br>– **The rule of law**<br>– **Bicameralism and Lower House more powerful**<br>– Legislative procedure<br>– **Writs**<br>– **Council of Ministers responsible towards the Lok Sabha**<br>– Parliamentary privileges |
| 3. | USA Constitution | – Written Constitution<br>– **Fundamental Rights**<br>– **Judicial review**<br>– **Independence of judiciary**<br>– Removal of Supreme Court and High Court Judges<br>– Post of Vice-President |
| 4. | Australian Constitution | – **Concurrent list**<br>– **Centre–state relationship**<br>– **Joint sitting of the two Houses of the Parliament** |
| 5. | Soviet Constitution | |

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|---|---|---|
| | | – **of the two Houses of the Parliament** |
| 5. | Soviet Constitution (erstwhile USSR, now Russia) | – **Fundamental Duties**<br>– Ideals of justice (social, economical and political) in the Preamble |
| 6. | German Constitution | – **Suspension of Fundamental Rights** during emergency |
| 7. | South African Constitution | – **Procedure for amendment of the Constitution**<br>– Election of a Rajya Sabha member |
| 8. | Japanese Constitution | – Procedure established by law<br>– **Federation with the strong Centre**<br>– Appointment of the Governor of a state |
| 9. | Canadian Constitution | – **Vesting residuary powers in the Central government**<br>– Advisory jurisdiction of the Supreme Court |
| 10. | Irish Constitution | – **Directive Principles of State Policy**<br>– Method of election of the President<br>– Nomination of members to the Rajya Sabha |
| 11. | French Constitution | – **Republic**<br>– **Ideals of liberty, equality and fraternity** in the Preamble |

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# Preamble to the constitution of India

(Objective, goals & basic principles of the Constitution of India)

WE, **THE PEOPLE OF INDIA,** having solemnly resolved to constitute India into a **SOVEREIGN, SOCIALIST, SECULAR, DEMOCRATIC, REPUBLIC** and

To secure to all its citizens:

**JUSTICE**, social, economic and political;

**LIBERTY** of thought, expression, belief, faith and worship;

**EQUALITY** of status and of opportunity, and to promote among them all,

**FRATERNITY** assuring the dignity of the individual and the unity and integrity of the Nation;

IN OUR CONSTITUENT ASSEMBLY this 26th day of November 1949, do **HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION**.

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- The Preamble is **Non – Justiciable** which means citizen cannot seek justice in the courts of law based on Preamble.
- Preamble is a part of Constitution and it is subjected to the amending power of the parliament.

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In 42nd Amendment Act, 1976, introduced 3 words to the preamble,

**1.Socialist** **2.Secular** **3.Integrity**

# Key words of Preamble

- **Sovereign:** A nation which is independent and which has no interference of external powers in management of its internal affairs.
- **Socialist:** (General meaning-Ownership of property only by state or Government)
- But both private & public sector to co-exist in order to attain welfare of people.
- In some areas private entities are strictly prohibited. Ex: Atomic energy, Railway etc.,
- **Secular:** State is not recognized by religion
- **Democratic:** Rule of people (representative democracy)
- **Republic:** Supreme head of a state is elected and is not a monarch nominated be heredity. (Eg: in India, both real head i.e., PM & Nominal head i.e., President, are elected)

  (Monarchy is contrary to republic)

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- **Justice:** The quality of **being just or fair**

- Social Justice, Economic Justice and Political Justice

- **Liberty:** It implies the **freedom of choice**.

- Our constitution provides opportunity for all to develop the personalities.

- It gives the liberty of thought, expression, belief, faith and worship through Fundamental Rights.

- **Equality:** To provide **equal opportunity and status** to all citizens without any discrimination.

- **Fraternity:** It implies the **sense of brotherhood** or friendship and **mutual support within a group**.

- Preamble ensures the **dignity of individual and the unity & integrity of India**

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# FUNDAMENTAL RIGHTS
# (Part III: Article 12-35)

Fundamental rights are those rights which are **'essential to lead a bare minimum quality of life'**

- Article-12, "State"- means

State, Union Executive & legislative Organs

Local Bodies (Panchayats, Municipal Corporations, Govt Boards)

Govt Corporations Companies

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- FRs of the constitution is described as the **Magna Carta of India**
- Originally, there are **seven fundamental rights** i.e., Right to Property
- **44th Amendment Act of 1978** erased the Right to Property from fundamental rights and **made as a legal right** under Article 300 A
- Now there are **Six Fundamental Rights**
- It is barrowed from **USA Constitution**

# Important Characteristics of Fundamental Rights

- They are **justiciable**.
- **Supreme court and High courts** act as the **protector** defender and guarantor of the FRs of the people.
- The FRs are **guaranteed against the state only**
- There is only legal remedies available and not the constitutional remedies
- FRs are **not absolute but quantified**
- The state can impose reasonable restrictions on them
- Ex: Prohibition on any objectionable comments in social media
- The parliament has the **power to amend** any FRs
- The FRs can **suspend during National Emergency** except rights given under Article 20 and 21.
- The application of **FRs is limited to armed force**, intelligence agencies (RAW & IB), etc.,
- **Foreigners can also enjoy few FRs** not all six rights

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# Six Fundamental Rights are as follows

1. Right to equality (Article 14-18)
2. Right to Freedom (Article 19-22)
3. Right against Exploitation (Articles 23-24)
4. Right freedom of Religion (Articles 25-28)
5. Cultural & Educational Rights of Minorities (Article-29-30)
6. Right to Constitutional Remedies (Article-32)

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# RIGHT TO EQUALITY
## (Article 14-18)

- **Article 14:** Equality before Law and Equal Protection of Law
- **Article 15:** Prohibition of Discrimination on certain grounds
- **Article 16:** Equality of Opportunity in Matters of Public Employment
- **Article 17:** Abolition of Untouchability
- **Article 18:** Abolition of Titles

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# RIGHT TO FREEDOM

## (Article 19-22)

- **Article 19:** Protection of Six Rights
- Freedom of Speech, Assembly, Association, Movement, Residence and Profession, occupation, Trade or Business

- **Article 20:** Protection in Respect of conviction for offences
- No ex-post facto law, No double Jeopardy, No self incrimination
- Article 20 **cannot be suspended** during emergency period

- **Article 21:** Protection of Life and Personal Liberty

- **Article 21A:** Right to Education
- 21A added in **86th Amendment Act 2002** : **Free & Compulsory education** for all children between the **age of 6 and 14 years**

- **Article 22:** Protest against Arrest and Personal Detention

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# RIGHT AGAINST EXPLOITATION (Article 23-24)

- **Article 23:** Prohibition of traffic in Human Beings and Forced Labour

- **Article 24:** Prohibition of Employment of Children in Factories etc.,

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# RIGHT TO FREEDOM OF RELIGION (Article 25-28)

- **Article 25:** Freedom of Conscience and Free Profession, Practice and Propagation of Religion
- **Article 26:** Freedom to manage Religious Affair
- **Article 27:** Freedom Not to Pay Tax for Religious Promotion
- **Article 28:** Freedom Not to Attend Religious Instruction

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# CULTURAL AND EDUCATIONAL RIGHTS
## (Article 29-30)

- **Article 29:** Protection of Interests of Minorities
- No citizen shall be **denied admission to any educational institution** maintained by the state on the grounds of relegion, caste etc.,
- **Article 30:** Rights of Minorities to Establish and Administer Educational Institutions

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# RIGHTS TO CONSTITUTIONAL REMIDIES

- **Article 32:** Remedies for enforcement of rights conferred by this part

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This right gives a citizen the right to **approach a high court or the supreme court** to get any of the fundamental rights restored in case of their violation.

- It is a **heart and soul** of the constitution

# Writ - Command in writing in the name of court

- Habeas Corpus (H)
- Mandamus (M)
- Prohibition (P)
- Certiorari (C)
- Quo Warranto (Q)

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- **Habeas Corpus (H):**

- Writ ordering for the arrested person to be presented before the court.
- Arrested person to set free

- **Mandamus (M)**

- Writ issued against a particular office holder if he/she is not doing legal duty.
- Infringing the right of Individual

- **Quo Warranto (Q)**

- If a person is holding a office which he/she is not entitled to hold
- Writ of Quo Warranto restricts that person from acting as an office holder

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- **Prohibition (P)**

- Issued by higher court over lower court (Supreme court or high court).
- If lower court is considered a case is going beyond its jurisdiction.

- **Certiorari (C)**

- Writ issued for transferring the matter pending in lower court or other authority to higher court or authoity.

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# MCQs

1. Which of the following writ is issued by the supreme court if it sends an order to restrain a person from acting in an office to which he is not entitled

a) Habeas Corpus
b) Prohibition
c) Certiorari
d) Quo warranto

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2. Which of the following article of the Constitution of India covers the Rights to Freedom?

a) Article 19 - 22
b) Article 29 – 30
c) Article 32
d) Article 14 - 18

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**a) Article 19 - 22**

b) Article 29 – 30

c) Article 32

d) Article 14 - 18

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3. During the National Emergency which of the following provision stands suspended

a) DPSP
b) Amendment Procedure
c) Fundamental Rights
d) Judicial Review

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**c) Fundamental Rights**

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4. Which FR ceased to be a FR and became a Legal Right under the 44th Amendment of the Constitution

a) Right to Property
b) Right to Primary Education
c) Rights to Information
d) Right to Life

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**a) Right to Property**

b) Right to Primary Education

c) Rights to Information

d) Right to Life

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5. Fundamental Rights in the Indian Constitution have been taken from the

a) Russian Constitution
b) US Constitution
c) British Constitution
d) Act of 1935

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a) Russian Constitution

**b) US Constitution**

c) British Constitution

d) Act of 1935

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6. Article 21A of the Constitution of India provides Right to

a) Work
b) Privacy
c) Equality
d) Education

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a) Work
b) Privacy
c) Equality
**d) Education**

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7. In the Indian Constitution as per FRs, Abolition of Untouchability is a

a) Right to Equality
b) Rights to Freedom of Religion
c) Rights against Exploitation
d) Rights to Constitutional Remedy

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7. In the Indian Constitution as per FRs, Abolition of Untouchability is a

**a) Right to Equality**

b) Rights to Freedom of Religion

c) Rights against Exploitation

d) Rights to Constitutional Remedy

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8. The Preamble of the Constitution of India has been amended so far

a) Four Times
b) Thrice
c) Twice
d) Once

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b) Thrice
c) Twice
**d) Once**

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9. The Indian Constitution is

a) Based on Conventions
b) A brief Document
c) An evolved Constitution
d) Written and Bulky Document

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10. The Constitution of India is

a) A Unitary State
b) A Federation
c) A Quasi Federal State
d) A Union of States

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a) A Unitary State
b) A Federation
**c) A Quasi Federal State**
d) A Union of States

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11. What is the present number of Article in Indian Constitution

a) 395
b) 376
c) 445
d) 448

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a) 395
b) 376
c) 445
**d) 448**

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**Note:** However as of now the present number of **article is 470**

12. Which Amended Act added the word “Secular” in Constitution of India?

a) 42nd Amendment
b) 44th Amendment
c) 45th Amendment
d) 46th Amendment

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12. Which Amended Act added the word "Secular" in Constitution of India?

**a) 42nd Amendment**

b) 44th Amendment

c) 45th Amendment

d) 46th Amendment

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